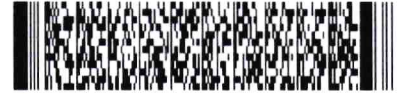


Easement

Version 3.3 released on 6/29/23

PW0120075



CITY COUNCIL USE ONLY

Date Received: _____
Committee Date: _____
1st Agenda Date: _____

Tracking #: _____

Committee: _____
Hearing Date: _____
2nd Agenda Date: _____

CITY CLERK USE ONLY

☐ Scanned

Date: 11.01.2023

☐ Posted

Item #: 2311.02590

All department items requiring Council approval must be submitted through the Mayor's Office.

Primary Details

Board Approval

Other Board Name _____

City Council Approval

☒ Yes ☐ No

Department
Public Works

Contact Name
Michelle L. Lester

Email
mlester@cityoftulsa.org

Phone
918-596-7262

Easement Type
Waterline

Owner-Grantor
Chris & Carrie O'Hara

Bid/Project Number
TMUA-W 22-88

Project Title
31st St S: 161st E Ave to 193rd E Ave

Council District
6

Section
14

Township
19

Range
14

Addition
UNPLATTED

Lot

Block

Address
16807 E 31st St

Parcel Number
1A

Additional Information/Tracking Number

Budget

Contract Types

☒ No Payments Involved

☐ Revenue Contracts

☐ Expense Contracts

Funding Source(s)

203310009Z.WaterDist.7400.74003122.541101: \$28.00

TOTAL: \$28.00

Approvals

for Department: _____
Legal: _____
Board: _____
Mayor: _____
Other: _____

Date: 10.05.23
Date: 10.18.2023
Date: _____
Date: NOV 01 2023
Date: _____

Policy Statement

Background Information

Project TMUA-W 22-88: 31st St S: 161st E Ave to 193rd E Ave

The City of Tulsa is installing a waterline in the vicinity of E 31st Street S and S 161st E Avenue. The attached Water Easement is required for the project and is being donated by the owners.

Owners: Chris & Carrie O'Hara

Parcel 1A

Payment request is attached to the Tulsa County Clerk for the filing fee (\$28.00). PDZ:MSL:brh

Summation of the Requested Action

Mayoral approval and City Council acceptance.

Other Pertinent Details

Processing Information for City Clerk's Office

Post Execution Processing

☐ Mail vendor copy (add'l signature copies attached)

☒ Must be filed with other governmental entity

☐ Add'l governmental entity approval(s) required

Additional Routing, Processing or Contact Details

Originals to be picked up by Courtney Jones, 6-9549, for further processing

A23-5036

WATER EASEMENT

KNOW ALL MEN BY THESE PRESENTS:

That the undersigned, **Chris & Carrie O'Hara, husband and wife**, (Grantors) the owners of the legal and equitable title to the following real estate situated in Tulsa County, State of Oklahoma, for and in consideration of the sum of One Dollar (\$1.00) from the City of Tulsa, Oklahoma, a municipal corporation (City), and other good and valuable considerations, receipt of which is hereby acknowledged, does hereby grant and convey unto the said City of Tulsa, Oklahoma, a perpetual easement through, over, under and across the following described property, situated in said County, to-wit:

See Exhibit "A"

for the purpose of permitting the City, to construct a **water main or mains** thereon through, over, under, and across said property, together with all necessary and convenient appurtenances thereto; and to use and maintain the same and of affording the City, its officers, agents, employees, and/or all persons under contract with it, the right to enter upon said premises and strip of land for the purpose of surveying, excavating for, constructing, operating, repairing, and maintaining of such construction.

The City is hereby given and granted the exclusive possession of said above premises for the purposes aforesaid and Grantors, for themselves and their heirs, administrators, successors and assigns, covenants and agrees that no building, structure, fence, wall or other above ground obstruction will be placed, erected, installed or permitted upon the above described land; and further covenants and agrees that in the event the terms of this paragraph are violated by the Grantors, or any person in privity with them, such violation will be promptly corrected and eliminated immediately upon receipt of notice from City, or City shall have the right to remove or otherwise eliminate such violation, and Grantors, their heirs, administrators, successors and assigns, shall promptly pay the actual cost thereof.

TO HAVE AND TO HOLD Such easement and right-of-way unto the City, its successors or assigns, forever.

Dated this 9th day of September, 2023.

CITY OF TULSA
OFFICE OF CITY CLERK
175 E 2ND ST - STE 260
TULSA, OKLAHOMA 74103

By: [Signature]
Name: Chris O'Hara

By: [Signature]
Name: Carrie O'Hara

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

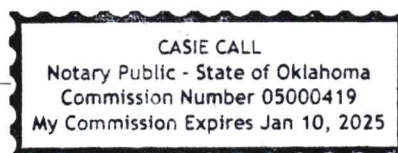
Before me, the undersigned, a Notary Public, in and for said County and State on this 13 day of September, 2023, personally appeared **Chris & Carrie O'Hara, husband and wife**, to me known to be the identical persons who executed the within and foregoing instrument, and acknowledged to me that their executed the same as their free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

[Signature]
Notary Public

My commission expires:

1-10-25



APPROVED AS TO FORM:


Senior Assistant City Attorney

APPROVED AS TO SUBSTANCE:


Director

ACCEPTED BY CITY COUNCIL:

Date: _____

BY: _____
Name: Christa Patrick
Title: Chair

APPROVED BY MAYOR:

CITY OF TULSA, OKLAHOMA,
a municipal corporation

Date: _____

BY: _____
Name: G. T. Bynum
Title: Mayor

ATTEST:

City Clerk

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the _____ day of _____, 2023, personally appeared Christa Patrick to me known to be the identical person who accepted the within and foregoing instrument as Chair of the City Council of the City of Tulsa, Oklahoma, and acknowledged to me that she accepted the within and foregoing instrument as her free and voluntary act and deed and as the free and voluntary act and deed of the City Council of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the _____ day of _____, 2023, personally appeared G. T. Bynum, to me known to be the identical person who approved the within and foregoing instrument as Mayor of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

EXHIBIT "A"

Page 1 of 2

PARCEL NO. _____ 1A

COUNTY _____ TULSA

LEGAL DESCRIPTION

CHRIS O'HARA AND CARRIE O'HARA
PERMANENT EASEMENT

A TRACT OF LAND LOCATED IN THE SOUTHEAST QUARTER OF THE SOUTHWEST QUARTER (SE/4 SW/4), SECTION FOURTEEN (14), TOWNSHIP NINETEEN (19), NORTH RANGE FOURTEEN (14) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

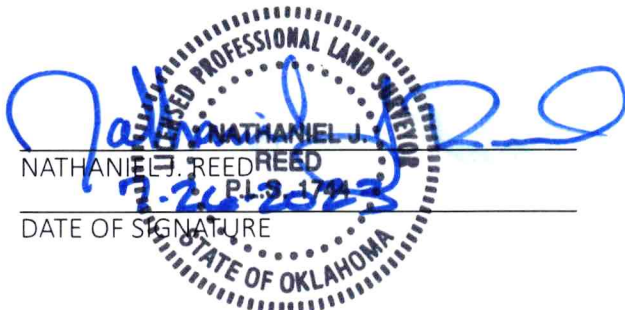
BEGINNING AT THE SOUTHEAST CORNER OF SAID SW/4; THENCE SOUTH 88°41'05" WEST AND ALONG THE SOUTH LINE OF SAID SW/4, FOR A DISTANCE OF 426.90 FEET; THENCE NORTH 01°19'17" WEST AND PARALLEL WITH THE EAST LINE OF SAID SW/4, FOR A DISTANCE OF 50.00 FEET; THENCE NORTH 88°41'05" EAST AND PARALLEL WITH SAID SOUTH LINE, FOR A DISTANCE OF 426.90 FEET TO A POINT ON SAID EAST LINE; THENCE SOUTH 01°19'17" EAST AND ALONG SAID EAST LINE, FOR A DISTANCE OF 50.00 FEET TO THE POINT OF BEGINNING.

CONTAINING 21,345.00 SQUARE FEET OR 0.49 ACRES, MORE OR LESS.

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

REAL PROPERTY CERTIFICATION:

I, NATHANIEL J. REED, CERTIFY THAT THE ATTACHED LEGAL DESCRIPTION CLOSES IN ACCORD WITH EXISTING RECORDS, IS A TRUE REPRESENTATION OF THE REAL PROPERTY AS DESCRIBED, AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.

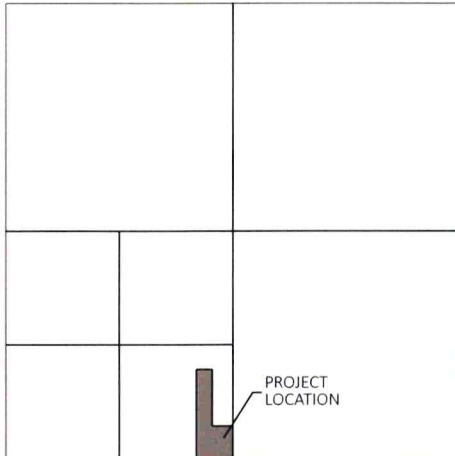

NATHANIEL J. REED
PLS 174
7-26-2023
DATE OF SIGNATURE



NATIVE PLAINS
Surveying & Mapping, LLC
A Native American Owned Business
5807 South Garnett Road, Suite K, Tulsa, Oklahoma, 74128
Telephone: 918.234.7596, Fax: 918.893.5552
Certificate of Authorization No. 4916
Expires June 30, 2025

EAST 21st STREET SOUTH

SOUTH 161st EAST AVENUE



SOUTH 177th EAST AVENUE

EAST 31st STREET SOUTH

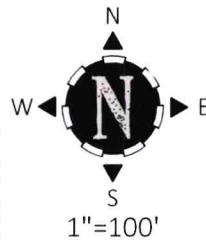


EXHIBIT "A"

Page 2 OF 2

PARCEL NO. 1A

COUNTY TULSA

LEGAL DESCRIPTION: A TRACT OF LAND LOCATED
IN THE SE/4 OF THE SW/4 OF SECTION 14,
TOWNSHIP 19 NORTH, RANGE 14 EAST, TULSA
COUNTY, STATE OF OKLAHOMA

SEC 14 T 19 N R 14 E

BEFORE GROSS	0.00	SF	0.00	ACRES
EXISTING R/W	0.00	SF	0.00	ACRES
PERMANENT EASEMENT	21,345.00	SF	0.49	ACRES

50' RIGHT OF WAY TO PSO BOOK 2781, PAGE 180
WITH DEED AND ASSIGNMENT OF RIGHT OF WAY EASEMENTS
BOOK 2946, PAGE 655 WITH PARTIAL RELEASE OF EASEMENT
BOOK 2963, PAGE 335

PROPERTY IS INCLUDED WITHIN THE LANDS DESCRIBED IN
EASEMENT AGREEMENT, DOC. #2015031663, HOWEVER
THE EXACT LOCATION OF THE EASEMENT IS NOT DEFINED
THEREIN.

LINE	BEARING	DISTANCE
L1	S 88°41'05" W	426.90'
L2	N 01°19'17" W	50.00'
L3	N 88°41'05" E	426.90'
L4	S 01°19'17" E	50.00'

30' EASEMENT AGREEMENT DOC.
#2020058364. THE APPARENT ACCESS DRIVE IS
NOT WITHIN THE LANDS DESCRIBED THEREIN.

CHRIS O'HARA AND CARRIE O'HARA
GENERAL WARRANTY DEED
DOC. #2015031274

1B

17.5' OKLAHOMA NATURAL GAS (ONG)
RIGHT OF WAY AGREEMENT DOC.
#2014077397

25.25' OKLAHOMA NATURAL GAS (ONG) RIGHT OF WAY
AGREEMENT BOOK 2943, PAGE 15
WITH
ASSIGNMENT AND ASSUMPTION OF REAL PROPERTY INTERESTS
DOC. #2014010512

L3

24.75' STATUTORY R/W

E. 31st ST. S.

SOUTH LINE SW/4
SEC. 14, T.19N., R.14E.

L1

1A

EAST LINE SW/4
SEC. 14, T.19N., R.14E.

POB
S.E. CORNER SW/4
SEC. 14, T.19N., R.14E.

LEGEND

POB POINT OF BEGINNING

POC POINT OF COMMENCEMENT

7/26/23

MUNIS for TMUA-W 22-88
As of 9/20/2023

Project string

▲ Project *	203310009Z	CW - Water Mains Replacements <6 in
▲ Phase *	WaterDist	Water distribution mains
▲ Task *	7400	TMUA Water Capital Projects
Sub-Task *		
Name *	CW - Water Mains Replacements	
Short Name *	WTR_REPL<6	
Status	Active	
Projected date range	07/01/2019	to 07/01/2024
Actual date range		to

Project String Balances

GL Accounts

	Project Year 2024		Project Year 2023
Original Budget	.00		.00
Transfers - In	.00		.00
Transfers - Out	.00		.00
Revised Budget	3,323,000.00		3,323,000.00
Actual (Memo)	.00		753,395.44
Encumbrances	3,699.54		.00
SOY Encumbrances	.00		.00
Requisitions	.00		.00
Inception to SOY	3,299,950.07		2,546,554.63
Available	19,350.39		23,049.93
Percent Used	99.42		99.31

Project String Balances

GL Accounts

Default GL account

Fund	SubFund	Function
Org	Object	Project
74003122	541101	

MUNIS
INVOICE COVER SHEET

Vendor Name and Address

Tulsa County Clerk

Department #: 32- Public
Works

Date: 9/25/2023

Special Handling

☐ Wire Transfer

☒ Will Pick up

Email: elewis@cityoftulsa.org

ACCOUNTS PAYABLE USE

Allocation code: _____

MUNIS VENDOR NUMBER

1222-6

MUNIS CONTRACT #

PROJECT STRING (if applicable)

ORG

OBJECT

AMOUNT

203310009Z.WaterDist.7400

74003122

541101

\$28.00

\$0.00

\$0.00

INVOICE NUMBER/DESCRIPTION

Filing Fees

Project TMUA-W 22-88

Parcel 1A

REMARKS

Purchase
Authority

☐

Special Approval

☐

Exception

☐

Contract

Invoice

☐

Original Attached

☐

Prepay (Attach form)

☐

Refund

Affidavit

☐

Affidavit attached (form TUL-373)
For invoices over \$25,000

☒

Not applicable

Prepared by: Bruce Hutton

EH

Munis Workflow approval

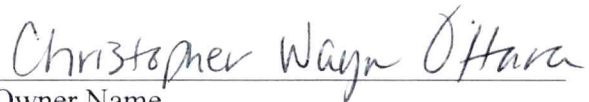
Date: 9/25/2023

DONATION CERTIFICATE

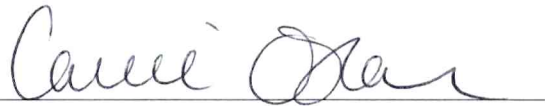
I/we, the undersigned, hereby certify that I/we have been fully informed of my/our right to receive just compensation for the Water Easement upon my property located at **16807 E 31st St, Tulsa OK**, but have elected to donate the Water Easement to the City of Tulsa for the construction of **Project #TMUA-W 22-88**.



Sign



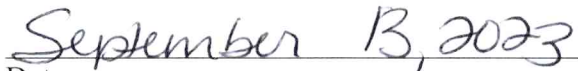
Owner Name



Sign



Owner Name



Date